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RESOLUTION OF

PROCEDURE OF WARNING

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint on February 2, 2023, with the data protection authority of Lower Saxony, Germany. The complaint is directed against JCDECAUX ESPAÑA, S.L.U. with NIF B28762003 (hereinafter, JCDECAUX). The reasons for the complaint are as follows:

The complainant requested the deletion of their personal data from JCDECAUX on December 22, 2022. As of January 30, 2023, the complainant had not received any response from JCDECAUX, and their data had not been deleted.

Attached to the complaint is:

- A printout of an email sent by ***EMAIL.1 (hereinafter, the complainant's email) to protecciondedatos@jcdecaux.com dated December 22, 2022, with the following content (the original in German):

Unofficial translation: "Hello, please delete my Sevici account and all data connected to it, including, but not limited to, payment information. Regards."

- A screenshot of a mobile application showing, under the title "MY PROFILE," associated with the complainant's email, a section with data called "My payment information."

SECOND: Through the "Internal Market Information System" (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), aimed at promoting cross-border administrative cooperation, mutual assistance among member states, and information exchange, the aforementioned complaint was transmitted on February 2, 2023, and was registered with the Spanish Agency for Data Protection (AEPD) on February 3, 2023. The transfer of this complaint to the AEPD was carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the Protection of Natural Persons with regard to the Processing of Personal Data and on the Free Movement of such Data (hereinafter, GDPR), taking into account its cross-border nature and that this Agency is competent to act as the lead supervisory authority, given that JCDECAUX has its main establishment in Spain.

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The data processing carried out affects individuals in several member states. According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, it acts as an "interested supervisory authority," in addition to the German data protection authority of Lower Saxony, the authorities of Belgium, France, Italy, and the German authority of Bavaria Private Sector, all under Article 4.22 of the GDPR, since the individuals residing in the territory of these supervisory authorities are substantially affected or are likely to be substantially affected by the processing subject to this procedure.

THIRD: On February 6, 2023, in accordance with the then-applicable Article 64 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint filed by the complainant was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to supervisory

authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

On June 29, 2023, a document was submitted to the AEPD on behalf of JCDECAUX in response to an information request (which was received on June 20, 2023), in which the following information was provided, among others:

1. A copy of the privacy policy in effect at the time the complainant made their deletion request (December 22, 2022). Within the section "7. YOUR RIGHTS" of this privacy policy, regarding how to exercise the rights, it states the following:

"To exercise this right, you can send a request:

- By email: protecciondedatos@jcdecaux.com

- By postal mail: JCDecaux España, S.L. Att.: Personal Data Protection Department Avenida de Aragón, 328 Polígono Industrial "Las Mercedes" 28022 Madrid

Your request must specify your first and last name, the email address used to create your account, and your subscription number.

In some cases, we may ask you to include a copy of your identity document along with your request to verify your identity."

2. Indication that "After conducting a thorough analysis and carrying out the necessary checks, we have no record of entry into the infrastructure of the JCDecaux Group of the email sent by A.A.A. in C/ Jorge Juan, 6

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Date December 22, 2022, through the address ***EMAIL.1 to the address that is enabled for the exercise of rights by the affected parties, protecciondedatos@jcdecaux.com." ...

"From the JCDecaux headquarters in France, where our information systems are managed, the mailbox and the antispam platforms of the aforementioned email have been checked, and no trace of email from this sender has been found."

A screenshot of a search for emails sent by the claimant's email in two mailboxes of the account protecciondedatos@jcdecaux.com is provided, yielding a total of zero results.

As a possible cause, it is indicated that "Considering that the claimant's email address may be of questionable reliability due to its very nomenclature and that the security systems of the JCDecaux Group's messaging infrastructure utilize an external platform to filter emails that may be spam, we assume that this filter has caused our systems to directly block the claimant's email and, therefore, there are no records of this email's entry in our messaging infrastructure."

3. Indication that, following the request sent by the AEPD along with the information request, it has been decided to cancel the claimant's account, delete their data, and that the data protection officer informs the claimant of this.

4. Printout of an email addressed to the claimant's email, dated June 27, 2023, with the following text:

"A.A.A.,

We hope this email finds you well.

We are contacting you regarding an account deletion request (...) requested through the Lower Saxony Data Protection Authority. Therefore, please be informed that we will proceed with such request and contact you when the cancellation is duly completed.

Do not hesitate to contact us in case of further assistance.

Thanks and best regards,"

Unofficial translation:

"A.A.A.:

We hope this email finds you well.

We are contacting you regarding an account deletion request that (...) was requested through the Lower Saxony Data Protection Authority. Therefore, we inform you that we will proceed with such request and will contact you when the cancellation is duly completed.

Do not hesitate to contact us if you need anything else.

Thank you and best regards,”

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5. Printout of an email addressed to the claimant's email, dated June 29, 2023, with the following text:

“A.A.A.:

We hope this email finds you well.

We hereby inform you that we have proceeded with your request, and we inform you that your personal data has been successfully removed from our database.

Please do not hesitate to contact us in case of further assistance.

Best regards,”

[Unofficial translation:

“A.A.A.:

We hope this email finds you well.

We inform you that we have proceeded with your request, and we inform you that your personal data has been successfully removed from our database.

Please do not hesitate to contact us if you need anything else.

Best regards”]

6. Indication, regarding the measures taken to prevent similar incidents, that “Taking into consideration the security measures of the information systems, on June 28, 2023, the measure was taken to increase notifications from the platform that filters emails that may go to spam to have greater monitoring of possible claims that may enter directly into the spam platform. For security reasons, at JCDecaux Spain, we cannot control those claims that may be blocked beforehand by the spam platform, as these are criteria applied directly by the platform.”

FIFTH: According to the report collected from the AXESOR tool, the entity JCDECAUX ESPAÑA, S.L.U. is a “Group Matrix” type company with a sales volume, in the fiscal year 2022, of

***CANTIDAD.1 euros and 567 employees.

SIXTH: On December 22, 2023, the Director adopted a draft agreement to initiate a warning procedure. Following the process established in Article 60 of the GDPR, on December 22, 2023, the aforementioned draft was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to formulate relevant and justified objections. Within the deadline for this purpose, the interested supervisory authorities did not present relevant and justified objections in this regard, so it is considered that all authorities agree with this draft decision and are bound by it, in accordance with the provisions of paragraph 6 of Article 60 of the GDPR.

The processing period of the proceedings was automatically suspended during that period, in accordance with the provisions of Article 64 of the LOPDGGD.

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SEVENTH: On January 22, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the complained party, for the alleged infringement of Article 17 of the GDPR as classified in Article 83.5 of the GDPR.

EIGHTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on January 22, 2024, as evidenced by the acknowledgment of receipt in the file.

NINTH: On February 2, 2024, a written statement of allegations from JCDECAUX was received, which,

in summary, includes the following considerations:

1. JCDECAUX received on June 20, 2023, the resolution intended to clarify the terms of the complaint filed by the complainant, regarding the exercise of the right to data deletion. In this regard, it reiterates everything stated, and therefore reproduces here what was already answered on June 29, 2023:

a) it attached a copy of the privacy policy and terms of use that were in effect at the time the complainant requested the exercise of the right. It also attaches it in this document as document No. 1. In this regard, it can be observed:

Within the section "7. YOUR RIGHTS" of this privacy policy, regarding how to exercise the rights, the following is indicated:

"To exercise this right, you can send a request:

- By email: protecciondedatos@jcdecaux.com

- By postal mail: JCDecaux España, S.L. Att.: Personal Data Protection Department Avenida de Aragón, 328 Polígono Industrial "Las Mercedes" 28022 Madrid

Your request must specify your first and last name, the email address used to create your account, and your subscription number.

It is possible that, in some cases, we may ask you to include a copy of your identity document along with your request to verify your identity."

b) a copy of the contract or user license that the complainant accepted to register for the service, which is again attached as document No. 2.

c) regarding the actions taken concerning the complainant's request, JCDECAUX stated that, after the appropriate checks, there was no record of the email sent by the complainant to the group's infrastructure, to the email address "protecciondedatos@jcdecaux.com"

d) in case a response had been given to the complainant's request to exercise their rights, proof of the response was required. To this issue, JCDECAUX stated that it could not respond to it, as there was no record of that email.

It also stated that, from the parent company in France, where the information systems of JCDECAUX are managed, the mailbox and the antispam platforms of the aforementioned email were checked, and no trace of the complainant's email was found. They attach a screenshot confirming these checks as document No. 3.

e) they state that, after receiving the letter from this Agency, they proceeded to contact the complainant to inform them that their request would be addressed. For this, they provide as document No. 4 the email in which it can be read (in English, the original):

"A.A.A.:

We hope this email finds you well.

We are contacting you regarding an account deletion request that (...) you submitted through the Lower Saxony Data Protection Authority. Thus, we inform you that we will proceed with this request and will contact you when the cancellation is duly completed.

Please do not hesitate to contact us if you need anything else.

Thank you and best regards,"

They also state that they have proceeded to cancel the account and delete the complainant's data.

f) the response sent to the complainant is dated June 27 and 29, 2023, and they again attach it to this document as document No. 5. In this communication, it can be read (in English, the original):

"A.A.A.:

We hope this email finds you well.

We inform you that we have proceeded with your request, and we inform you that your personal data has been correctly deleted from our database.

Please do not hesitate to contact us if you need anything else.

Best regards"

g) regarding the causes that may have motivated the complaint, JCDECAUX states:

"that the causes that may have motivated the incident of the complaint are due to the fact that in the messaging infrastructure of the JCDECAUX group, infrastructure that manages the messaging systems of all the subsidiaries of the JCDECAUX group worldwide, including JCDECAUX España, there are no records of incoming emails."

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sent by the claimant (...) neither to the email inbox “protecciondedatos@jcdecaux.com” nor to the antispam platforms.”

“Considering that the claimant's email address may be of questionable reliability due to its very nomenclature and that the security systems of the JCDECAUX Group's messaging infrastructure rely on an external platform to filter emails that may be spam, we assume that this filter is the cause of our systems directly blocking the claimant's email and, therefore, there are no records of this email entering our messaging infrastructure.”

g) Regarding the measures adopted to prevent similar incidents, the date of implementation, and the controls carried out to verify their effectiveness, JCDECAUX states:

Taking into account the security measures of the information systems, on June 28, 2023, the measure was taken to increase notifications from the platform that filters emails that may go to spam to have greater tracking of possible claims that may enter directly into the spam platform. For security reasons, at JCDecaux Spain, we cannot control those claims that may be blocked beforehand by the spam platform, as they are criteria applied directly by the platform.”

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in the present procedure,

PROVEN FACTS

FIRST: The claimant has submitted a complaint, in which it is verified that, on December 22, 2022, they sent an email to the address protecciondedatos@jcdecaux.com with the following content (the original in German):

“Hello, please delete my Sevici account and all data connected to it, including, but not limited to, payment information. Regards”

SECOND: It has been verified that the email address “protecciondedatos@jcdecaux.com” is the email address that appeared in the privacy policy and terms of use of the service, which was in effect at the time the claimant requested the exercise of the right.

THIRD: JCDECAUX has attached documentation verifying that it has proceeded to delete the claimant's data, and has communicated this via an email dated June 29, 2023.

LEGAL GROUNDS

I

Competence and applicable regulations

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In accordance with the powers granted to each supervisory authority by Article 58.2 and 60 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

Considering the circumstances listed in Article 83.2 GDPR, this warning procedure is being followed in accordance with the provisions of Article 64.3 of the LOPDGDD.

II

Preliminary issues

In this case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, as JCDECAUX collects and retains, among others, the following personal data of individuals: name and surname, photo, email address, among other processing activities.

JCDECAUX carries out this activity in its capacity as data controller, as it is the one that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR. Furthermore, it is a cross-border processing, given that JCDECAUX is established in Spain, although it provides services to other countries in the European Union.

On its part, Article 17 of the GDPR regulates the right to erasure.

III

Claims made

Regarding the claims made against the initiation agreement of this warning procedure, a response is provided according to the order presented by JCDECAUX:

1.- JCDECAUX states that they did not respond to the email submitted by the claimant within the established timeframe because they had not received it. They add that the possible reasons for not receiving it may have been that “the claimant's email address may be of questionable reliability due to its very nomenclature and that the security systems of the JCDECAUX Group's messaging infrastructure rely on an external platform to filter emails that may be spam...”

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In relation to this issue, the Guidelines 01/2022 on the rights of data subjects - Right of access, state that “there are no specific requirements regarding the format of a request. The data controller must provide appropriate and easy-to-use communication channels that can be easily utilized by the data subject. However, the data subject is not obliged to use these specific channels and may instead send the request to an official contact point of the data controller. The data controller is not obliged to respond to requests sent to completely random or apparently incorrect addresses.”

Thus, in section 3.1.2 regarding the form of the request, it is stated:

52. As previously noted, the GDPR does not impose any requirements on data subjects regarding the form of the request for access to personal data. Therefore, in principle, there are no requirements under the GDPR that data subjects must observe when choosing a communication channel through which to contact the data controller.

a

53. The EDPB encourages data controllers to provide the most appropriate and easy-to-use communication channels, in accordance with Article 12, paragraph 2, and Article 25, so that the data subject can submit an effective request. However, if the data subject submits a request through a communication channel provided by the data controller that is different from the one indicated as preferred, such request will generally be considered effective, and the data controller must process such request accordingly (see the examples below). Data controllers must make all reasonable efforts to ensure that the exercise of data subjects' rights is facilitated (for example, if the data subject sends the request to an employee who is on leave, an automatic message informing the data subject of an alternative communication channel for their request could be a reasonable effort).

b

54. It should be noted that the data controller is not obliged to respond to a request sent to a random or incorrect email address (or postal address) not directly provided by the data controller, nor to any communication channel that is clearly not intended to receive requests related to the rights of the data subject, if the data controller has provided an appropriate communication channel that can be used by the data subject.

c

55. The data controller is also not obliged to respond to a request sent to the email address of an

employee of the data controller who may not be involved in processing requests related to the rights of data subjects (for example, drivers, cleaning staff, etc.). These requests will not be considered effective if the data controller has clearly provided the data subject with an appropriate communication channel. However, if the data subject sends a request to the employee of the data controller who deals daily with the matters of the data subject (single customer contact, such as, for example, the personal account manager), such contact should not be considered random, and the data controller must make all reasonable efforts to respond.

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reasonable efforts to process such a request in a manner that it can be redirected to the contact point and respond within the timeframes set by the GDPR.

56. However, the EDPB recommends, as a good practice, that data controllers implement adequate mechanisms to facilitate the exercise of the rights of data subjects, including auto-response systems to inform about staff absences and appropriate alternative contact, and, where possible, mechanisms to improve internal communication among employees regarding requests received from those who may not be competent to process them.”

In the present case, the complainant has directed their written request to the email address protecciondedatos@jcdecaux.com, which is the address that JCDECAUX has enabled for data subjects to submit their requests for the exercise of rights. This is stated in the document submitted on June 29, 2023, in the “General Conditions for access and use of the SEVICI system,” in section 15.4 “data protection rights,” where it states:

“Users may exercise, if they are interested, their rights of access, rectification, deletion, opposition, limitation of data processing, data portability, as well as the right not to be subject to automated decisions. They can do so by submitting a request addressed to the Data Protection Officer, JCDecaux España, S.L.U. at Avenida de Aragón 328, CP 28022, Madrid (Spain), or to the following email address: “protecciondedatos@jcdecaux.com,” attaching a copy of their ID.”

In light of the above, and by virtue of what is stated in the aforementioned guidelines, to the extent that the complainant has submitted their request through the communication channel provided by JCDECAUX, this allegation is dismissed.

III

Right to deletion (right to be forgotten)

Article 17 of the GDPR “Right to deletion (right to be forgotten)” states:

“1.- The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), and this is not based on another legal ground;
- c) the data subject objects to the processing under Article 21, paragraph 1, and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing under Article 21, paragraph 2;
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation under Union or Member State law applicable to the data controller;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8, paragraph 1.”

In the present case, it is noted that the complainant requested the deletion of data from JCDECAUX on December 22, 2022.

JCDECAUX has stated that the probable cause for not having addressed this request in a timely

manner is that the complainant's email requesting deletion was directed straight to the spam folder, which is why they could not attend to it on time.

Furthermore, it has stated that it has proceeded to delete the complainant's data on June 29, 2023, and this has been communicated to the complainant on June 29, 2023.

Therefore, in accordance with the evidence available at this moment of resolution of the warning procedure, it is considered that the known facts constitute an infringement attributable to JCDECAUX for violation of the previously transcribed article.

IV

Classification and qualification of the infringement of Article 17 of the GDPR

The known facts constitute an infringement attributable to JCDECAUX, classified under Article 83.5 under the heading "General conditions for the imposition of administrative fines" states:

"5. Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

b) the rights of data subjects under Articles 12 to 22;

For the purposes of the limitation period for infringements, the infringement attributed shall be subject to a one-year limitation period, in accordance with Article 74 of the LOPDGDD, which qualifies the following conduct as minor:

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"Minor infractions of a merely formal nature mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 shall be considered minor and shall prescribe after one year, particularly the following:

c) Failing to respond to requests for the exercise of rights established in Articles 15 to 22 of Regulation (EU) 2016/679, unless the provisions of Article 72.1.k) of this organic law apply.

V

Warning for the infringement of Article 17 of the GDPR

Without prejudice to the provisions of paragraph Article 83 of the GDPR, the aforementioned Regulation states in paragraph 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

Furthermore, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third paragraph:

"3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the proceedings shall be archived.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case."

In the present case, once all the documentation in the file has been analyzed, it is deemed lawful to issue a warning to JCDECAUX for the infringement of Article 17 of the GDPR.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO ISSUE A WARNING to JCDECAUX ESPAÑA, S.L.U., with NIF B28762003, for the alleged infringement of Article 17 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to JCDECAUX ESPAÑA, S.L.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered concluded.

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